

The Court follows established case law, which holds that a landlord has no duty to protect others from a tenant's dog unless the landlord had actual knowledge of the dog and its dangerous propensities.

Here, Defendant's evidence shows that Defendant Latif rented the property where the bite occurred to Defendant Damore since 2012. (S. Latif dec. ¶4.) The dog that bit Plaintiff was a large white Akhita. (Perez depo. 18:2-3; 20:10-12.) Latif managed the property until 2019 when her son, Umair Latif, started managing the property (S. Latif dec. ¶3-4; U. Latif dec. ¶5.) Until 2019, Defendant Latif would drive by the property once a month and visit the property to address maintenance issues. (S. Latif dec. 4.) Defendants' son began managing the property in 2019 and would drive by the property twice a month and visit the property for maintenance issues. (U. Latif dec. ¶6.) Both Defendant Latif and her son state that they did not know there was a white Akhita dog at the property. (S. Latif dec. ¶6; U. Latif dec. ¶6.) They also state that they did not know that the dog had attacked or bitten anyone before, they did not receive any complaints about the dog and they did not know of the dog's dangerous or vicious propensity. (S. Latif dec. ¶¶ 10-16; U. Latif dec. ¶¶11-16.)

Thus, the evidence shows that Defendant and her son had no knowledge of the dog and further no knowledge that the dog was dangerous. Defendant's evidence is sufficient to meet her burden showing that the negligence and premises liability claims fail because Defendant did not owe a duty here.

Plaintiff "disputed" several of the material facts by stating "Defendant relies solely on its own Self-Serving Declaration and is Insufficient to Establish this Fact for Purposes of Summary Judgment. Unknown to Plaintiff." Such a statement is insufficient to dispute the material fact cited. (*Trujillo v. First American Registry, Inc.* (2007) 157 Cal.App.4th 628, 636 [the court should not reject a declaration as self-serving in a motion for summary judgment] (disapproved on other grounds in *First Student Cases* (2018) 5 Cal.5th 1026, 1026); see also Code of Civil Proc. §437c(e).)

Plaintiff did not provide any evidence in opposition to this motion. And thus, Plaintiff has not shown that there is a triable issue of material fact here.

In opposition, Plaintiff argues that Defendant has not met her burden on the strict liability claims. Plaintiff did not sue Defendant for strict liability and therefore those claims are not part of this motion. "The pleadings play a key role in a summary judgment motion and ""set the boundaries of the issues to be resolved at summary judgment."" [Citation.]" (*Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal.App.5th 438, 444.)

Therefore, the Court grants Defendant's motion for summary judgment.

2. 9:00 AM CASE NUMBER: C24-00212
CASE NAME: ADAM RIVAS VS. CAM TRUONG
HEARING ON SUMMARY MOTION JUDGMENT TO BE FILED BY DEFENDANT'S CAM TROUNG ETC.
FILED BY: TRUONG, CAM M
TENTATIVE RULING:

The motion for summary judgment or, in the alternative, for summary adjudication, filed by defendant Cam M Truong, is **denied**.

I. Factual Background

Plaintiffs were tenants at 1813 Robin Lane in Concord from approximately February 2019 to September 2023. (SSUMF, Fact. No. 1.) Moving defendant, Cam M Truong, owned the property until April 2023, when it was sold to co-defendants, the Josephs. (SSUMF, Fact. No. 2.) Defendant Truong asserts that she had a good relationship with plaintiffs, that she hired one of the plaintiffs (Garcia) to perform maintenance and repairs, that he successfully resolved issues in the bathroom and kitchen, and that he was compensated for his work. (SSUMF, Fact. Nos. 3-5.) Truong further asserts she demanded plaintiffs clean the bathroom when she was attempting to sell the property, which they did. (SSUMF, Fact. No. 6.)

A Notice of Violation was issued by the City in December of 2022. Truong asserts that issues cited relating to plaintiffs' unit were "very minor," including mold, roaches, and cracked walls. Truong asserts Cynthia Lopez testified she was not responsible for initiating the complaint and did not know about it. Truong also asserts various aspects and interpretations of this notice, including who might have been responsible for the underlying causes, the degree to which the notice related to plaintiffs' unit, and the prompt abatement of the cited issues (by February 2023). (SSUMF, Fact. Nos. 7-11.)

Truong asserts that she sold the property in April 2023, that plaintiffs testified their primary reason for relocating was a need for more space, and that they never complained about roaches or bedbugs after 2021. (SSUMF, Fact. Nos. 12-15.) Truong asserts that plaintiff Cynthia Lopez's deposition testimony "demonstrates that all issues raised during her tenancy were addressed by Cam Truong" and that she never refused to pay Garcia for the work he performed. (SSUMF, Fact. No. 15.)

Plaintiffs filed this case in January 2024, alleging seven causes of action against Truong: (1) Breach of the Warranty of Habitability, (2) Breach of Statutory Warranty of Habitability, (3) Breach of the Covenant of Quiet Enjoyment, (4) Negligence, (5) Private Nuisance, (6) Violation of Tenant Anti-Harassment Ordinance, and (7) Violation Of Business and Professions Code Section 17200.

Truong filed an answer in May of 2024, which generally denied all allegations and asserted affirmative defenses. While the motion purports to be filed on behalf of co-defendant, Long Dac Lai, that defendant was dismissed in May of 2024.

II. Motion and Opposition

The motion, filed in September of 2025, seeks summary judgment as to the entire complaint, and summary adjudication, in the alternative, as to each of the seven causes of action.

The motion is supported by a request for judicial notice and two declarations, one from counsel and one from Truong, who attaches the lease agreement, the City's Notice of Violation, an email confirming abatement of the violations, text messages between Truong and "plaintiffs," and photographs of the cleaned bathroom in May 2022. Counsel's declaration includes excerpts from the depositions of two of the plaintiffs, Cynthia Lopez and Leslie Rivas, as well as excerpts from the deposition of real estate agent, Monjid Aldiyyat. The declaration also attaches a complaint purportedly filed by plaintiffs in 2018 against other landlords.

In opposition to the motion, plaintiffs provide a memorandum of points and authorities and a response to the separate statement. They argue that defendant cannot meet her burden of

establishing that no triable issues of material fact exist, and citing the moving papers themselves, plaintiffs purport to dispute nearly all of the above “undisputed” facts.

III. Evidentiary Matters

In support of the motion, Truong requests judicial notice of plaintiffs’ complaint. The Court notes there are other documents included in the attachment, but with respect to the complaint itself, the request is **granted**.

With the reply, Truong submits both a declaration and a “Reply Separate Statement of Additional Undisputed Material Facts.” The latter provides additional facts defendant apparently believes necessary for her motion. The declaration attaches additional deposition excerpts. New evidence cannot be raised in a reply. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537.) The rule is consistent with the basic requirement that a “moving party must carry the initial burden of informing its opponent and the court of the specific basis for its motion.” (*People v. Williams* (1999) 20 Cal.4th 119, 129; see also *San Diego Watercrafts, Inc. v. Wells Fargo Bank, N.A.* (2009) 102 Cal.App.4th 308, 316 [where a party files a dispositive motion, it violates the opposing party’s due process rights for the court to consider new arguments and issues in reply].) Accordingly, the Court strikes the reply declaration and statement of facts and has not considered either in the course of this ruling.

IV. Standard

A motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc., § 437c (c).) A defendant’s burden consists of showing one or more elements of plaintiff’s cause of action cannot be established, or that there is a complete defense to a cause of action. (Code Civ. Proc. §437c(p)(2).) If, and only if, defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or defense. (*Ibid.*) The court may not weigh the evidence in ruling on a motion for summary judgment. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 856.)

A motion for summary adjudication under Code of Civil Procedure § 437c(f)(1) can be granted “if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c(f)(1).) (See also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 251.) A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c (f)(2).)

V. Analysis

A. Procedural Concern

The separate statement submitted by defendant repeats the same 15 facts nine times, but does not list them beneath a statement of the issue to be decided. For example, UMF No. 1 is stated on pages 1, 7, 13, 19, 24, 30, 35, 41, and 47 of the separate statement, but for each time UMF No. 1 is repeated beyond page 7, there is no “issue” listed above it. The same is true for other repetitions of the facts. The statement of issues in defendant’s notice is must be “repeated, verbatim, in the separate statement,” per California Rules of Court. (Cal Rules of Court, Rule 3.1350(b).) To the extent this failure to comply would constitute a basis for denial of summary adjudication, the Court has nonetheless proceeded to examine the motion on the merits with respect to each cause of action.

B. Substantive Basis for Denial – Defendant Fails to Meet Initial Burden

The scope of the moving party's initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal. App. 3d 1, 18.) Accordingly, the Court examines each cause of action, as pleaded in the complaint.

1. Breach of the Warranty of Habitability (C/A 1 & 2)

In their first cause of action, plaintiffs allege that defendant breached the warranty of habitability both contractually and pursuant to Civil Code §1941. Specifically, they allege their residence had garbage disposal deficiencies; electrical deficiencies; plumbing deficiencies; lack of hot water; water leaks; water damaged ceilings, floors and walls containing mold and mildew; rodent infestations; insect infestations; pest infestations; security and safety deficiencies; storage deficiencies; and that they suffered loss of use of the premises for various periods of times for the years 2014, 2015, 2016, 2017, 2018 and to the present. (Complaint, ¶¶8-9.)

To establish a cause of action for breach of the warranty of habitability, a tenant must show: (1) a defective condition on the property substantially affected its habitability; (2) that defendant knew or should have known of the defective condition; (3) that plaintiff was harmed; and (4) that defendant's conduct was a substantial factor in causing plaintiff's harm. (CACI 4350.) Defendant argues in her motion that plaintiffs cannot show the second or third elements (uninhabitable condition and notice). She has the initial burden to demonstrate as much. Defendant fails to do so.

Defendant attempts to rely on an absence-of-evidence theory to meet her initial burden. In an attempt to meet this burden (i.e., to show that plaintiffs do not have and cannot obtain evidence regarding notice or uninhabitable conditions), defendant relies on deposition testimony from select plaintiffs concerning select conditions. But the law is clear that a plaintiff's deposition testimony does not serve the same function as a contention interrogatory. (*Rifkind v. Superior Court* (1994) 22 Cal. App. 4th 1255, 1262-64; *Villa v. McFerren* (1995) 35 Cal. App. 4th 733, 748-49.) While a defendant may rely on factual devoid responses to contention interrogatories to meet its initial burden to show an absence of evidence, that is not what defendant does in this motion and a plaintiff is not required to state all contentions in response to deposition questions. The court cannot infer that plaintiffs have no evidence that defendant was on notice, or that uninhabitable conditions existed from the deposition responses, and thus defendant has not met her initial burden.

Because defendant did not meet her initial burden, plaintiffs had no burden to present controverting evidence. Plaintiffs do not provide evidence, but instead highlight the conflicts in the evidence provided by defendant.

In defendant's moving papers, certain allegations in the complaint go completely unaddressed (garbage disposal and electrical deficiencies), while other issues are only partially addressed (mold, roach and rodent infestations). At least one statement asserted by defendant is completely unsupported by the separate statement and underlying evidence. (See Memorandum of Points and Authorities, 8:9-11 [assertion related to "pest" being only a garden spider].)

Finally, some of plaintiffs' allegations appear to be supported by defendant's own evidence showing an issue of fact inappropriate for determination on summary judgment. For example, the notice of violation issued by the City of Concord supports the allegations by plaintiffs that there were habitability issues at some point in time, even if eventually corrected. While the separate statement addresses various evidence, a separate statement should include "ultimate facts." The ultimate facts required for the positions taken by defendant (that plaintiffs cannot show notice or uninhabitable conditions) are simply not included in the separate statement as required. Therefore, the motion

must be denied with respect to breach of the warranty of habitability claims.

2. Breach of the Covenant of Quiet Enjoyment (C/A 3)

In their third cause of action, plaintiffs allege that defendant breached the implied covenant of quiet enjoyment through various acts and omissions, including failing to implement a regular maintenance review and inspection process, failing to repair unsafe, unsanitary and uninhabitable conditions at the premises; and failing to maintain the premises in a habitable condition. (Complaint, ¶¶8-9, 21.)

It has long been the rule that in the absence of language to the contrary, every lease contains an implied covenant of quiet enjoyment. (*Petroleum Collections Inc. v. Swords* (1975) 48 Cal. App. 3d 841, 846.) However, the covenant of quiet enjoyment is not breached until there has been an actual or constructive eviction. (*Id.* at 847.) Under both types of eviction, the tenant eventually vacates the premises. In the case of an interference with the beneficial enjoyment of the premises, the tenant must surrender the premises within a reasonable time after the date of interference, or waive the right to abandon. (*Id.* at 847-848.) What constitutes a “reasonable period of time” is a question of fact to be determined by the trier of fact after considering all of the circumstances. (*Id.* at 848.)

Here, defendant argues that, because she sold the property in or around April 2023, and because plaintiffs vacated in September 2023, she is not liable for any purported breach of the implied covenant. This is not for the Court to decide on summary judgment. Defendant’s second argument that she maintained a positive relationship with plaintiffs also does not rule out the claim, regardless of whether they referred to her as a “nice lady.” Because habitability issues constitute one of the bases on which plaintiffs argue the implied covenant was breached, the above discussion related to the first and second causes of action is relevant to this cause of action as well.

Defendant fails to demonstrate she is entitled to judgment on the first two causes of action and therefore, the motion be denied with respect the third cause of action.

3. Negligence (C/A 4)

Defendant moves for summary adjudication on the negligence cause of action by incorporating her arguments with respect to the first and second causes of action, discussed above. Accordingly, the Court similarly incorporates the discussion related to those causes of action and the motion on this cause of action must be denied.

4. Private Nuisance (C/A 5)

Private nuisance is a “civil wrong based on disturbance of rights in land.” (*Monks v. City of Rancho Palos Verdes* (2008) 167 Cal.App.4th 263, 302.) So long as the interference is substantial and unreasonable, and such as would be offensive or inconvenient to the normal person, virtually any disturbance of the enjoyment of the property may amount to a nuisance. (*Ibid.*, internal citations omitted.)

In order to recover under this theory, plaintiffs must establish that the invasion of their use and enjoyment of the property was “substantial” and “unreasonable.” (*Id.* at 301.) Plaintiffs, in their complaint, incorporate their allegations concerning uninhabitable conditions.

Defendant’s moving papers argue that “the same analysis” applies as that involved in “the other causes of action discussed above.” (Memorandum of Points and Authorities in Support of Motion, 12:5.) Accordingly, as already discussed, defendant fails to rule out the existence of conditions that could create a nuisance and therefore, the motion on this cause of action must be

denied.

5. Violation of Concord Anti-Harassment Ordinance (C/A 6)

Plaintiffs allege that defendant violated the Concord Tenant Anti-Harassment Ordinance. Similar to the analysis with respect to the first and second causes of action, defendant fails to meet her initial burden.

Plaintiffs' claim for harassment in Violation of the Concord Anti-Harassment Ordinance, Municipal Code § 19.50.10, et seq., does not state precisely what evidentiary facts form the basis for this cause of action. Plaintiffs simply allege that "Defendants violated the ordinance." (Complaint, ¶39.) This ultimate fact begs the question of what evidence plaintiffs have to prove this claim at trial. But nothing in the separate statement provided by moving defendant outlines the scope of this claim from plaintiffs' perspective, leaving the Court to guess at what underlying evidence might exist.

In order to meet her initial burden, moving defendant would need contention interrogatories or some other means of eliciting the basis (or lack thereof) for this claim in order to show there are no triable issues of material fact. Defendant fails to meet her initial burden in this respect and therefore, the motion on this cause of action must be denied.

6. Violation Of Business and Professions Code Section 17200 (C/A 7)

An unlawful business practice claim brought pursuant to Civil Code section 17200, et seq prohibits unfair competition defined as any unlawful, unfair, or fraudulent business act or practice. Claims based on this code provision "borrow" violations of other laws and treats them as unlawful practices that are independently actionable under this provision. (See *Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal. 4th 163, 180.) As defendant points out, plaintiffs' claim under this provision arises from their other causes of action. As there is an insufficient showing on those other claims, defendant's motion on this cause of action is denied.

3. 9:00 AM CASE NUMBER: C24-02709
CASE NAME: MARIA SEREDKINA VS. PAVEL YEFENAU
***HEARING ON MOTION IN RE: TO CONSOLIDATE FOR ALL PURPOSES**
FILED BY: YEFENAU, PAVEL
TENTATIVE RULING:

Before the Court is a motion by plaintiff Maria Seredkina to consolidate this action with a related action, Case No. C25-02577, for all purposes. For the reasons set forth, the motion is **granted**.

Background

In this action, Plaintiff Maria Seredkina sued her former spouse Pavel Yefanau for claims arising out of his allegedly accessing plaintiff's "personal and work" electronic devices, including corporate phones and computers provided by her employer, without her consent. (First Am. Compl. ("FAC") generally ¶¶ 6-9.) She alleges that, by Yefanau obtaining access to her personal electronic devices without her consent or permission, defendant discovered plaintiff was involved in a relationship with her co-worker Stuart Maschmeier. (FAC ¶ 8.) Seredkina's operative FAC alleges causes of action for invasion of her constitutional right to privacy and intrusion into private affairs.

Stuart Maschmeier filed his own lawsuit against Yefanau arising out of Yefanau's accessing